

9:00 AM

Line 4

24-CIV-00269 HAMID KHAZAELI VS. DAVID A BREWER, ET AL

HAMID KHAZAELI
DAVID A BREWER

PRO SE
JOHN S. CLAASSEN

Plaintiff's Motion to Compel Further Responses to Request for Production of Documents, Set No. 3

TENTATIVE RULING:

Initially, the Court notes that Plaintiff's original and/or amended Notice of Motion, stated that the instant matter was set before a prior assigned Judge. However, effective April 13, 2026, by order of the Presiding Judge pursuant to San Mateo County Superior Court Local Rule 3.200(a), this matter was reassigned for all purposes, including the instant hearing, to the Honorable Michael L. Mau, Department 20, now located at 1050 Mission Road, South San Francisco, CA 94080. (*See* Cal. Rules of Court, Rule 3.1110 [the required Amended Notice "must specify" the location of the hearing].)

Plaintiff Hamid Khazaeli's (Amended and Combined) Motion to Compel Further Responses to RFP Set No. Three (the "Motion") is DENIED.

Plaintiff's Request for Monetary Sanctions is DENIED.

Defendants' Request for Monetary Sanctions is DENIED.

The Court notes that for the discovery at issue here, Plaintiff declares to have served the papers himself, which is improper. (Code Civ. Proc., § 1013a, subd. (1) (affidavit must state one is "not a party to the cause".) Defendants do not object and have responded, so there is no prejudice. The Court finds that the defect has been waived. (*Tate v. Sup. Ct.* (1975) 45 Cal.App.3d 925, 929 ["It is well settled that the appearance of a party at the hearing of a motion and his or her opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of the motion."].) Plaintiff is cautioned that per code, he is not allowed to serve such papers by himself as he is a named party.

A. Background

The underlying action for FEHA-based discrimination and retaliation arises from plaintiff's former employment with Notify Technology Corporation from 2006 to 2012 as enterprise sales manager. (FAC ¶9.) The named defendants include three individual non-employers— Michael Ballard, Siu Po Lee and Sandra Basel — who testified for the defense at a 2020 in one of plaintiff's former lawsuits regarding his employment tenure. (FAC ¶ 15.) Plaintiff seeks damages in excess of \$60,000,000. (FAC ¶31.) Because this matter has an extensive procedural history of which the parties are well-versed the Court does not repeat it here.

The instant motion was initially set for hearing on February 9, 2026 and later continued by a prior assigned department to the latest date of October 19, 2026, but on May 22, 2026, this Court *sua sponte*

advanced the hearing date. The Court notes that when this case was assigned to Dept. 20 which assignment was effective on April 13, 2026, there were approximately twenty-five (25) discovery and other motions already filed, and that plaintiff himself asked this Court to advance motions that were already fully briefed, including this same motion, to an earlier date.

B. Legal Standards

Discovery is permitted as to any nonprivileged matter relevant to the subject matter involved in the pending action, subject to proportionality limits. (Code Civ. Proc., §§ 2031.010, 2017.020.)

A party may move to compel further responses to document demands where a statement of compliance is incomplete, a representation of inability to comply is inadequate, or objections are without merit or too general. (Code Civ. Proc., § 2031.310(a).) The moving party bears the initial burden of demonstrating good cause with specific facts. (Code Civ. Proc., § 2031.310(b)(1).)

Document requests must describe the items sought with reasonable particularity. (Code Civ. Proc., § 2031.030(c)(1); *Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 222.) Meet-and-confer efforts are mandatory and must be reasonable and in good faith; perfunctory correspondence is insufficient. (Code Civ. Proc., §§ 2016.040, 2031.310(b)(2); *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1438.)

Where documents are withheld based on privilege or work product, the responding party must provide sufficient factual information to evaluate the claim, which may require a privilege log. (Code Civ. Proc., § 2031.240(c)(1).)

Trial courts possess broad discretion to manage discovery and to limit discovery that is unreasonably cumulative, overbroad, or disproportionate. (*Greyhound Corp. v. Superior Court* (1961) 56 Cal.2d 355, 380; *West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 417.)

C. Discussion

Plaintiff has propounded five sets of requests for production of documents (“RFP”) directed to five different Defendants. Plaintiff brings the instant Motion seeking to compel further production of documents and information, without objections, as to specific requests in all five sets.

The specific RFP at issue are: (1) RFP, Set Three, Nos. 25-26, propounded upon Defendant David A. Brewer; (2) RFP, Set Three, Nos. 32-33, propounded upon Defendant Former NT Corp.; (3) RFP, Set Three, Nos. 25-26, propounded upon Defendant Notify Technology Corporation (an Ohio Corporation); (4) RFP, Set Three, Nos. 31-32, propounded upon Defendant Paul F. Depond; and (5) RFP, Set Three, Nos. 31-32, propounded upon Defendant Robert Polychron. The requests are essentially the same but directed at different defendants.

The first RFP of each set at issue seeks “Any and all ‘DOCUMENTS’ that are identified by YOU in response to the Mandatory Initial Disclosure,” defining the capitalized terms. The second RFP of each set at issue seeks “Any and all DOCUMENTS that are identified by YOU in response to Plaintiff’s Request for Admission Set One and Two.” (See Khazaeli Decl., ¶ 3, & pp.6, 8, 10, 12, & 14, in Exh. 1.)

Plaintiff further seeks an Order compelling Defendants to produce either the information required to authenticate the electronic signatures on their Verifications, or else Verifications with wet signatures, an electronic copy of Defendants' April 2025 Proof of Service of documents by mail, a privilege log, and Code-compliant responses.

Plaintiff asks the Court to require Defendants to pay monetary sanctions in the amount of "\$1,000 per Defendant & per attorney plus the costs and fees of \$1,000.00 under CCP 2023.030 and other applicable authorities." (Amended Motion, 2:21-22.)

Defendants request monetary sanctions in the amount of \$2,250.00 for Counsel's time spent opposing the Motion. (Claassen Decl., ¶ 6.)

The Adequacy of Defendants' Responses and Document Production

Plaintiff asserts that the requested information is not only relevant and reasonably calculated to lead to admissible evidence, but also critical to Plaintiff's claims.

The Completeness of Document Production

Plaintiff appears to argue that Defendants are withholding some documents and/or parts of produced documents. (MPA iSo Motion, 3:22-27, & 4:2-7.) However, nowhere in Plaintiff's MPA does he identify specific documents claimed to be omitted or incomplete.

Plaintiff's argument as to the existence of withheld, privileged documents is equally unpersuasive, such as: "They agreed to produce all non-privilege documents (implying there are privilege documents) without producing privilege and redaction logs." (Reply, 3:16-17.) Moreover, Plaintiff appears to identify some documents of which he is aware that were not produced, though he does so in a context in which they seem not to have been required to be produced: "there were at least documents such as trial transcripts that were in possession and custody of Defendants and should have been identified in response to identification of documents in their response to the RFAs." (*Id.*, 3:18-20.)

As to the second RFP in each of the five Sets Three, Plaintiff argues that:

[Defendants] should have made reasonable inquiry such as but not limited and review the documents and information available to them such as Plaintiff's declaration submitted in opposition to their Anti-SLAPP motion and transcript of 2020 trial and then in response to Plaintiff's Request for Production of Documents No. 26 from BREWER, No. 33 from FNTC, No. 26 from NTC, No. 32 from DEPOND, No. 32 from POLYCHRON, identified at least these documents among other ones.
(SS, 5:13-18.)

Plaintiff speculates that Defendants must have reviewed some documents in determining that they identified no documents in responding to Plaintiff's underlying Requests for Admission ("RFA"), and that Plaintiff seeks the documents that Defendants presumably would have had to look at, to determine that they would not identify any documents in admitting, denying, stating their inability to comply with, or objecting to each RFA. This is speculation and circular reasoning. Defendants in contrast argue that it would be odd to respond to RFA with anything other than admission, denial, or a statement of inability to comply, though Defendants responded with only objections to Sets Two. (*See* Claassen Decl., ¶ 2, & Exh. B.) Defendants' Responses to Sets One include objections and denials. (*See* Claassen Decl., ¶ 2, &

Exh. A.) Defendants are correct that none of the Defendants identified a document in response to an RFA. Further, the only document the Defendants would have had to review to make this conclusion, would be their respective Response to the RFA's. This is conclusive and forecloses the ability to compel on the second RFP in each of the five RFP's at issue, i.e. there is nothing to compel.

Moreover, Plaintiff shows that Defendants pointed out to him that providing a privilege log: would be absurd anyway because the only documents that could have been disclosed based on the two requests you served could not by definition have been privileged. (i.e. documents identified in RFAs (none) and documents identified in initial disclosures (by definition, my client was not asserting privilege over them). (Khazaeli Decl., Meet-and-Confer Response from Defendants dated July 16, 2025, at p.155, in Exh. 10.) Defendants argue similarly in Opposition. This is logical.

Plaintiff claims to have identified at least one category of documents of which he is aware that has not been produced, however he only identifies it as a "partial document production and partial identification." (Khazaeli Decl., ¶ 7, Exh. 7 & 8.) This description is a generalization, lacks specificity, and is not an actual category of documents. Additionally, the records sought in that Exhibit 7 (*Id.*), are expressly related to and from a defective initial disclosure demand. As noted on today's calendar as motion line # 3 in this same case, Plaintiff's initial disclosures demanded under Code of Civil Procedure ("CCP") Section 2016.090 has a fatal defect, as Plaintiff is not represented by counsel and therefore cannot even make such a demand. "This section does not apply to any party in the action who is not represented by counsel." CCP § 2016.090(c). The Court views any production that Defendants did make in response to the defective Section 2016.090 as a voluntary production, which is not a proper basis for this motion to compel. Additionally, neither the defective Section 2016.090 demand nor Defendants Response were brought before the Court on this motion, and thus Plaintiff fails to meet its initial burden of proof.

Compliance with Code of Civil Procedure Section 2031.280

Per Plaintiff's assertions, Defendants' mandatory initial disclosures were woefully deficient and non-Code-compliant. Again, this argument ignores the fact that Plaintiff had no authority to even make a demand for initial disclosures. CCP § 2016.090(c). Plaintiff thus argues it was forced to propound the RFP, Set Three to obtain documents that Defendants plan to use at trial. Defendants again evaded, while failing to provide a privilege log. Even after agreeing before the Court at the Informal Discovery Conference ("IDC") of July 10, 2025, it is argued Defendants have not done so, although all of the requested documents are in electronic format and easily could be produced. (Khazaeli Decl., ¶¶ 8-11.)

The Court's comment on point was that:

As to substantive issues, Plaintiff complains that Defendants' responses as to the two Requests for Production ("RFPs") making up Plaintiff's Set No. Three of RFPs are insufficient. Defendants agreed to provide [] further responses and re-serve documents with a "slip-sheet" for purposes of compliance with CCP § 2031.280. Defendants committed to completing the foregoing by 07/18/2025, if not sooner.
(Minute Order, IDC, July 10, 2025.)

Apparently referring to Defendants' initial disclosures, Plaintiff asserts that Defendants "disclosed vaguely and too generally numerous documents that they could be in tens of thousands of pages in just one single line to be used at trial by them" (MPA iSo Motion, 3:23-24), and declares that Defendants "very vaguely identified tens of thousands of pages by approximately in line which was absolutely inadequate" (Khazaeli Decl., ¶ 3). Plaintiff further declares that Defendants' amended responses served

before the IDC of July 10, 2025, “suffered some similar deficiencies.” (*Id.*, ¶ 7, & Exh. 8.) Plaintiff then declares that after the IDC, Defendants “only reserved what they already served on 7/8/25.” (*Id.*, ¶ 8.)

Plaintiff’s Separate Statement (“SS”) states that:

Defendants failed to identify which documents respond to the Document Requests in violation of C.C.P. section 2031.280(a). The responses should have been amended in compliance with C.C.P. section 2031.280(a). They failed to include a privileged log for all the documents they revoke claim of privilege.
(SS, 3:25-4:2.)

Plaintiff declares Exhibit 8 of his Declaration to show the defective “partial document production and partial identification” (Khazaeli Decl., ¶ 7) that Defendants served before the IDC at which they agreed to “re-serve documents with a ‘slip-sheet’ for purposes of compliance with CCP § 2031.280” (Minute Order, IDC, July 10, 2025), and again served after the IDC (Khazaeli Decl., ¶ 8). Pages 78 and 122 of Exhibit 8 appear to show compliance with subdivision (a) of Code of Civil Procedure section 2031.280.

The parties also argue about Defendants’ proof of service (“PoS”) of document production by mail of April 2025 (Defendants show a PoS dated April 1, 2025, for “DEFENDANTS’ DOCUMENT PRODUCTION KVB000180-KVB004649” (Claassen Decl., ¶ 5, & p.71, in Exh. E)). Plaintiff argues there was only a service of 848, rather than some 4,500, pages of documents. (*See, e.g.*, Reply, 5:22; cf. Khazaeli Decl., Meet-and-Confer Response from Defendants dated July 16, 2025, at p.155, in Exh. 10 (“My clients complied with the agreement to re-produce the document production. We did so on July 10, 2025 with a slip sheet that specified the request to which it responded.”) (emphasis added). Plaintiff argues generally, without substantiation, that the actual production fell short of either number. (Khazaeli Decl., ¶ 7, & Exh. 8.)

Defendants declare that they have produced over 4,500 pages of documents, and believe that they have produced all documents responsive to Plaintiff’s RFP, Set Three. (Claassen Decl., ¶ 4.) Defendants further assert that Plaintiff’s reliance on Code of Civil Procedure section 2031.280 is misplaced, as that section goes to the format of production. Regardless, the parties agreed and it is reflected that compliance with this section could be by a “slip sheet.” *See* Minute Order, IDC, July 10, 2025. Plaintiff fails to meet its burden to demonstrate a lack of compliance.

Verification of Electronic Signatures

The validity and usage of electronic signature verification, including DocuSign, was addressed in the Court’s February 2, 2026 Minute Order at the hearing for plaintiff’s motion to compel further responses to plaintiff’s request for production of documents, set one. The Order stated wet-ink signatures were not required at this time because electronic verifications are permissible under the Uniform Electronic Transactions Act, subject to authentication. The Court does not find any circumstances, nor any compelling argument, to alter this decision.

The Proof of Service by Mail of April 2025

Plaintiff asserts that before the Court at the IDC of July 10, 2025, Defendants agreed to email him a copy of the subject PoS, but never did so. The Court does not have record of this agreement, but notes that Defendants show such a PoS in Reply. (Claassen Decl., ¶ 5, & Exh. E). The issue is thus moot.

Meet-and-Confer

The parties argue about the ineffective meet-and-confer process. It appears that Defendants' counsel has proceeded in writing rather than by telephone:

You purport to "recommend" a conference call. I disagree that a conference call would be useful. Indeed, in prior meet and confer phone calls in this case, you have spent the time, not to meet and conferring in good faith, but largely discoursing on procedure and the like. Your phone calls have been far from efficient and I do not believe another such phone call would be effective. (Khazaeli Decl., p.156, in Exh. 10.)

Defendants' counsel asserts that this is because Plaintiff sued him personally in this very same case. (Opp., 4:19-22.)

The purpose of the meet-and-confer requirement is to "lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes." (*Stewart v. Colonial W. Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1016.) The parties' difficulty with this process has clearly not reduced the burden on the court, and it may still be suitable for treatment by a discovery referee, though that is still to be decided. *See*, Order to Show Cause Hearing re: Why Discovery Referee Should not be Appointed for the Discovery Motions, currently set for hearing on August 14, 2026 per the Court's Registry.

In summary, Plaintiff's (Amended and Combined) Motion to Compel Further Responses to RFP Set No. Three is DENIED.

The Requests for Sanctions Are Denied.

Plaintiff seeks sanctions as described *supra*. Defendants assert that Plaintiff's request for sanctions should be denied because: Defendants have made significant efforts to comply with discovery and their responses are Code-compliant; Defendants have acted with substantial justification in opposing the Motion; and also that a self-represented party or attorney cannot recover attorney's fees (*Trope v. Katz* (1995) 11 Cal.4th 274, 280-281). It is not clear on what basis Plaintiff requests fees, when he has incurred no such fees.

Defendants' Opposition notices a request for sanctions. (Opp., 8:16-9:7.) Defendants request monetary sanctions in the amount of \$2,250 for Counsel's time spent opposing the Motion. (Claasen Decl., ¶ 6.)

The Court finds that despite the aggressive tone of both sides, on this specific motion the imposition of sanctions on either party would be unjust and therefore both requests are DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If contested, parties may appear to argue the tentative ruling. The Court will then take the matter under submission, and the Court will prepare the Order after hearing.

9:00 AM

Line 5

25-CIV-00912 YANG MIN YANG VS. JOSEPH GIRAUDO, ET AL

YANG MIN YANG
JOSEPH GIRAUDO

JONATHAN E. MADISON
DAVID M. LIU

Defendant Royal Business Bank's Demurrer to Plaintiff's First Amended Complaint

TENTATIVE RULING:

Defendant Royal Business Bank's Demurrer to Plaintiff Yang Ming Yang's First Amended Complaint is SUSTAINED IN PART and OVERRULED IN PART.

Plaintiff Yang Ming Yang may file a Second Amended Complaint correcting defects in the fifth cause of action no later than ten (10) days after service of written notice of entry of the formal order.

Defendant Royal Business Bank's Request for Judicial Notice is GRANTED, but only as to the existence of the documents as court records and recorded documents but not to the truth of any matter asserted therein. (See *Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 194.)

As a preliminary matter, due to the absence of any apparent prejudice, the Court has considered the late-filed opposition in exercise of its discretion. (See *Juarez v. Wash Depot Holdings, Inc.* (2018) 24 Cal.App.5th 1197, 1202.)

A. Legal Standard on Demurrer

The purpose of a demurrer is to test the legal sufficiency of the facts alleged in the operative complaint to see whether they state a cause of action under any legal theory, as a matter of law. (*New Livable Cal. v. Association of Bay Area Gov'ts* (2020) 59 Cal.App.5th 709, 714–715; *Genis v. Schainbaum* (2021) 66 Cal.App.5th 1007, 1014.) The demurrer may be made to the entire complaint or to any of the cause of action therein. (Code of Civ. Proc., § 430.50, subd. (a).)

To properly state a cause of action, a complaint must allege every element of that cause of action. (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1134.) And to be sustained, a “demurrer must dispose of an entire cause of action.” (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.)

In determining whether a complaint states facts sufficient to constitute a cause of action, courts accept the factual allegations of the complaint and any matters of which judicial notice can be taken but disregards contentions, deductions, and conclusions. (Code Civ. Proc., § 430.30, subd. (a); *Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 658.) “The complaint must be given a reasonable interpretation and read as a whole with its parts considered in their context.” (*Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, 824.) Thus, the complaint is